

TENTATIVE RULING(S) FOR August 20, 2026

Department S37 – Judge Winston Keh

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UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2425499

Marin vs County of SB

TENTATIVE RULING(S):

Before the Court is San Bernardino City Unified School District's (District) demurrer to the Third Amended Complaint's (TAC) first [negligent supervision], second [mandatory duty], and sixth causes of action [duty to approve CSSP] under Code of Civil Procedure section 430.10, subdivisions (e) [failure to state facts], and (f) [uncertainty]. Plaintiff opposes. The District replies. Also set for hearing is ASA Charter School's (School) motion to strike the TAC's inclusion of the School in the third cause of action [dangerous condition on public property] on the ground that Plaintiff did not obtain leave to amend the complaint against the School. Plaintiff opposes. The School replies.

The District's Demurrer

Declarations of Neil J. Berry and Trevor D. DeBus

Both parties include declarations with their moving papers seeking to introduce extrinsic evidence in support of their arguments. However, a demurrer challenges defects that appear on the face of the pleading, which includes incorporated exhibits, or from matters outside the pleading that are judicially noticeable. (*Blank v. Kerwan* (1985) 39 Cal.3d 311, 318 (*Blank*).) No other extrinsic evidence can be considered. (*Ion Equipment Corp. v. Nelson* (1980) 110 Cal.App.3d 868, 881.)

Plaintiff's Objection to the District's Notice

Plaintiff argues that the District's notice of demurrer is defective under Code of Civil Procedure section 1010 and California Rules of Court, rule 3.1320(a) because it states it is a "Demur to First Cause of Action of Plaintiff's Third Amended Complaint" and does not identify the second and sixth causes of action in the notice.

The District does not address this procedural issue but the notice states that the TAC "fails to state a cause of action and is uncertain as to claims made against the District. Further, the Complaint does not state facts sufficient to support a claim for Negligent Supervision [first cause of action], Breach of Mandatory Duty [second cause of action], or Failure to review and approve the Facially Deficient Comprehensive School Safety Plans [sixth cause of action]."

"Section 1010's requirement 'is for the benefit of the party upon whom the notice is served,' to make him or her aware of the issues to be raised in the motion." (*Golf & Tennis Pro Shop, Inc. v. Superior Court* (2022) 84 Cal.App.5th 127, 137, quoting *Hecq v. Conner* (1928) 203 Cal. 504, 506.) Thus, the purpose of Section 1010's notice requirements "is to cause the moving party to 'sufficiently define the issues for the information and attention of the adverse party and the court.' [Citation]." (*Kinda v. Carpenter* (2016) 247 Cal.App.4th 1268, 1277, quoting *Luri v. Greenwald* (2003) 107 Cal.App.4th 1119.)

Here, Plaintiff has substantively responded to the District's arguments regarding the sufficiency of the TAC's allegations with respect to the second and third causes of action. Further, Plaintiff acknowledges his understanding that the demurrer is directed to these causes of action.

Therefore, the District's notice is sufficient to include these causes and the Court will consider the demurrer on the merits.

The District's Request for Judicial Notice

With its moving papers, the District requests judicial notice, under Evidence Code section 452, subdivisions (d) [court records], (g) [common knowledge], and (h) not reasonably subject to dispute], of the following documents: (1) Declaration of Ernestine Hopwood (RJN, Exh. C); (2) Plaintiff's March 5, 2025, Tort Claim submittal (RJN, Exh. 1); and (3) the Court's May 28, 2025, November 12, 2025, and April 7, 2026, tentative decisions on the parties' prior demurrers (RJN, Exhs. 2-4).

The Court GRANTS the District's request as to Plaintiff's Government Tort Claim (RJN, Exh. 1), because it was attached to each of Plaintiff's prior complaints and cannot be reasonably disputed.

The Court DENIES the request as to the Hopwood declaration (RJN, Exh. C), because there is no basis for the Court to take judicial notice of a declaration for the truth of matters stated therein.

Finally, the Court also DENIES the request as to the Court's tentative decisions (RJN, Exhs. 2-4), because there is no showing the Court adopted the tentatives in ruling on the respective demurrers.

Analysis—Demurrer

The District demurs to Plaintiff's first [negligent supervision], second [breach of mandatory duty], and sixth [failure to review the School's safety plan] causes of action arguing it is immune from liability under Education Code section 44808. The District also argues that the second and sixth causes of action are improper because they are impermissible variances from Plaintiff's government claim.

Plaintiff argues that the District is not immune from liability under the "specific assumption of responsibility" and "failure to exercise reasonable care" exceptions in Education Code section 44808. Plaintiff also argues the District is liable under Government Code section 815.6, because

it had a duty to approve the School's Comprehensive School Safety Plan (CSSP) which, in turn, required ingress and egress safety measures be included in the plan.

1. Education Code Section 44808

Education Code section 44808 states: "Notwithstanding any other provision of this code, no school district, city or county board of education, county superintendent of schools, or any officer or employee of such district or board shall be responsible or in any way liable for the conduct or safety of any pupil of the public schools at any time when such pupil is not on school property, unless such district, board, or person has undertaken to provide transportation for such pupil to and from the school premises, has undertaken a school-sponsored activity off the premises of such school, has otherwise specifically assumed such responsibility or liability or has failed to exercise reasonable care under the circumstances. [¶] In the event of such a specific undertaking, the district, board, or person shall be liable or responsible for the conduct or safety of any pupil only while such pupil is or should be under the immediate and direct supervision of an employee of such district or board."

"In essence, [section 44808] grants a district immunity unless a student was (or should have been) directly supervised during a specified undertaking.' [Citation.] The portion of section 44808 that refers to failing to exercise reasonable care does not create a common law form of general negligence; it refers to the failure to exercise reasonable care during one of the mentioned undertakings. [Citation.]" (*Bassett v. Lakeside Inn, Inc.* (2006) 140 Cal.App.4th 863, 870-871 (*Bassett*).)

A school district is liable for a student's off-campus injury only when "the student is involved in activities supervised or undertaken by the school." (*Ramirez v. Long Beach Unified School Dist.* (2002) 105 Cal.App.4th 182, 190.) Indeed, the "consensus of decisions from the Court of Appeal is that 'section 44808 limits the liability of schools for after-hours, off-campus activity, absent a specific undertaking'" by the school during which a student is injured. (*Cerna v. City of Oakland* (2008) 161 Cal.App.4th 1340, 1356.) Thus, courts have "interpreted section 44808 to provide that school districts are not responsible for the safety of students outside school property absent

a specific undertaking by the school district and direct supervision by a district employee.” (*Id.* at pp. 1356-1357.)

Cases in which schools have been held to have a duty of care for the safety of students off campus arise from circumstances where school personnel did something on campus or failed in their supervisory duties of students on campus. For example, *Hoyem v. Manhattan Beach City School District* (1978) 22 Cal.3d 508, involved the school's failure to adequately address the process of keeping students on school grounds during the school day. The *Hoyem* Court explained, “defendant’s liability in this case is posited not on an alleged failure to supervise [the student] when he was off the school premises, but rather on an alleged failure to exercise due care *in supervision on school premises*.” (*Hoyem v. Manhattan Beach City School District*, *supra*, 22 Cal.3d at p. 523, original italics.) “Thus, *Hoyem*, consistent with the language of section 44808, withdraws immunity only when the student is or should be under the school’s direct supervision.” (*Bassett*, *supra*, 140 Cal.App.4th at p. 872.) In *Joyce v. Simi Valley Unified School Dist.* (2003) 110 Cal.App.4th 292 (*Joyce*), a student was injured when hit by a vehicle after passing through an open school yard gate that enticed students to cross a dangerous intersection. And in *Perna v. Conejo Valley Unified School District* (1983) 143 Cal.App.3d 292 (*Perna*), the matter involved a teacher who kept the children after school to grade papers knowing that crossing guards would not be available and that the children would have to cross a busy street.

2. Plaintiff’s Allegations of the Undertaking

Plaintiff asserts that the most critical and fundamentally new allegation in the TAC is the allegation regarding Tickell’s email on February 11, 2015, asking the School to cease crossing guard activities unless certain conditions were met. Plaintiff argues that by sending this email, the District removed the only safety measures for the crosswalk, set conditions for reinstatement that only the District could facilitate, and assumed control over whether the crossing guard program could ever be resumed. Plaintiff argues this undertaking was continuing because the conditions set for re-implementing the program by the District were never completed. (TAC ¶¶ 41, 43.)

Plaintiff's allegations do not establish an undertaking by the District to provide crossing guards at the intersection on the date of Plaintiff's accident. Although alleging that the District was initially involved with providing crossing guards at the intersection for the 2014-2015 school year, the TAC specifically alleges that the crossing guard program was "permanently discontinued" after the school year. (TAC ¶ 18.) Further, the District told the School that it could resume the crossing guard program in February of 2015, but the program was not later implemented for lack of City approval. There are no allegations to establish that the continued provision of crossing guards was required or mandated or that the previous undertaking for the 2014-2015 school year could not be discontinued. Further, Plaintiff alleges that from September 2019 to the present, the District "had no authority to order or prevent the school from posting a crossing guard at the crosswalk." (TAC ¶ 21.) Thus, there are no allegations that on the date of Plaintiff's accident, the District undertook to provide crossing guards at the intersection or otherwise undertook to provide for Plaintiff's safety off school property. The TAC alleges that any undertaking had been completed when the crossing guard program was halted.

Because the TAC does not allege an undertaking by the District on the date of the accident, the District is immune from liability under Education Code section 44808 for Plaintiff's injury that occurred off the school grounds. Therefore, the Court SUSTAINS the District's demurrer to the first cause of action for negligent supervision.

3. Government Code sections 815.6 and 830

The District asserts that it is not liable under Government Code section 815.6 because Education Code section 47604.32 does not establish a mandatory duty requiring it to take action relating to crosswalks near charter schools. The District argues Plaintiff cites no authority to establish that the District has an express duty to check the School's work relating to its CSSP or to correct or modify a submitted plan.

In opposition, Plaintiff argues that the District had the non-discretionary mandatory duty to: (1) ensure the School complied with all reports required by law, including the CSSP [Ed. Code § 47604.32, subd. (a)(3)]; (2) the CSSP was required to include "[p]rocedures for the safe ingress and egress of pupils, parents, and school employees to and from the school" [Ed. Code § 32282,

subd (a)(2)(G)]; and (3) the District was required to approve the CSSP [Ed. Code § 32288, subd. (a)(1)]. (TAC ¶¶ 23-24.) Plaintiff argues that because the District had a duty to approve the CSSP, it also had a duty to review the CSSP to ensure the contents of the plan were adequate and that the plan contained all mandatory content. The District failed its duty because the CSSP was legally non-compliant by its failure to contain procedures for the “safe ingress and egress of students who walk to school through the 35th Street crosswalk” which was “15 feet from the school’s primary entrance.” (TAC ¶ 25.) Plaintiff alleges this school entrance is a dangerous condition under Government Code section 830. (TAC ¶ 31.)

The TAC does not allege that the School failed to prepare the CSSP or that the CSSP did not include any procedures for safe ingress and egress of pupils to and from school. The TAC alleges only that the CSSP contained no specific procedures relating to the off-campus crosswalk. Plaintiff provides no authority that the CSSP was required to address off-campus crosswalks or that crossing guards would be mandated as part of the CSSP.

“Education Code sections 32280-32289 require districts to develop a ‘comprehensive school safety plan that addresses the safety concerns identified through a systematic planning process,’ and that *aims at preventing crime and violence on campus*. (Ed. Code § 32280.) While Education Code section 32280 imposes a duty to develop a school safety plan, *it leaves implementation to the public entity’s discretion or judgment*: ‘It is the intent of the Legislature that all California public schools ... develop a comprehensive school safety plan It is also the intent of the Legislature that all school staff be trained on the comprehensive school safety plan.’ (*Ibid.*) There is *no mandatory requirement that a school’s safety plan must include specific action items*. (Ed. Code, § 32282, subd. (a)(2)(J).) Rather, the “procedures to prepare for active shooters or other armed assailants shall be based on the specific needs and context of each school and community.” (*Ibid.*) [Emphasis added].” (*C.I. v. San Bernardino City Unified School Dist.* (2022) 82 Cal.App.5th 974, fn. 3.)

Contrary to Plaintiff’s assertions, there is no mandatory requirements regarding what must be included in a CSSP. Further, the statute leaves implementation of the CSSP to the discretion of the public entity. Thus, there is no requirement that the School’s CSSP include any procedures

for monitoring or assisting students at off campus crosswalk. Even if the CSSP provided for crossing guards, implementation of the program would be within the School's or District's discretion. Therefore, the TAC does not allege any breach of a mandatory duty with respect to the District's approval of the CSSP.

Plaintiff also argues that paragraph 29-32 of the TAC supports a claim against the District under the reasoning of *Joyce, supra*, 110 Cal.App.4th 292. Plaintiff argues that by having the School's main entrance 15 feet from the crosswalk and limiting vehicle drop-offs to certain specific times, the entrance was a dangerous condition that required Plaintiff to use the dangerous crosswalk. (TAC ¶¶ 29-30.) Plaintiff argues the District is liable for this issue because it had supreme regulatory authority of safety under its obligation to approve the CSSP. Plaintiff's argument that the FAC and *Joyce* provide a sufficient factual basis to state a claim against the District is without merit.

In *Joyce*, the Court held that maintaining an open gate that invited students to cross a busy street to enter the school grounds could constitute a "dangerous condition of public property" under Government Code section 830, subdivision (a). Here, Plaintiff's negligent supervision claim is predicated on Education Code section 44808, the District's undertaking, not on Government Codes related to a dangerous condition of property. The District is not named as a party in the TAC's third cause of action [dangerous condition of public property].

The District asserts that *Joyce* is inapplicable because the gate at issue in *Joyce* was owned and operated by the defendant in that case and that the TAC does not allege the District has control over the entrance near the crosswalk.

Plaintiff argues that the District improperly seeks to introduce extrinsic evidence to show that it did not own or control the school property and that Plaintiff was not one of its students.

Plaintiff is correct that this evidence is improper and should not be included in this analysis, but the TAC does not allege that the District has any ownership or control over the crosswalk or entrance to the School that would give rise to liability.

Thus, the TAC does not allege sufficient facts to establish that the District breached a mandatory duty that resulted in Plaintiff's injury. Therefore, the Court sustains the District's demurrer as to the second and sixth causes of action for breach of mandatory duties.

4. Plaintiff's Government Claim

The District also argues that there is a fatal variance between Plaintiff's Government Tort Claim and the allegations of the second and sixth causes of action relating to its duty regarding the CSSP. The District asserts the government claim only referenced its failure to provide crossing guards at the crosswalk but makes no reference to any other District oversight failures in connection with the School. As a result, the District argues that the alleged failure to review and approve the deficient CSSP was not implicated by the government claim.

In opposition, Plaintiff argues he was only required to describe the circumstances which brought about his injury and that all "theories in the TAC arise from the same conduct, the same location, and the same absence of safety measures identified in the Tort Claim."

The Government Claims Act requires a claim to identify "[t]he date, place and other circumstances of the occurrence or transaction which gave rise to the claim asserted" and provide a general description of the resulting injury or loss. (Gov. Code, § 910, subds. (c), (d).) Its purpose is to provide the public entity with sufficient information to investigate the claim and settle it, if appropriate, without litigation. (*Stockett v. Association of California Water Agencies Joint Powers Ins. Authority* (2004) 34 Cal.4th 441, 446 (*Stockett*).)

A government claim need not contain the detail or specificity required of a pleading, and a subsequent complaint may elaborate on the facts or assert additional legal theories. (*Stockett, supra*, 34 Cal.4th at pp. 446–447.) The claim-presentation requirement is not intended to operate as a procedural trap. (*Blair v. Superior Court* (1990) 218 Cal.App.3d 221, 225 (*Blair*).) The factual basis for each cause of action, however, must be "fairly reflected" in the claim. A complaint may not premise liability on an entirely different set of facts or make a complete shift in its allegations. (*Stockett, supra*, 34 Cal.4th at p. 447; *Hernandez v. City of Stockton* (2023) 90 Cal.App.5th 1222, 1231 (*Hernandez*).)

Here, Plaintiff asserts that the government claims and TAC identify the same conduct, the same location, and the same absence of safety measures and that the TAC merely provides additional facts to amplify the “exact safety vacuum identified in the initial claim.”

The relevant inquiry, however, is not limited to whether the claim and complaint share a date, location, or hazardous instrumentality. The claims must also fairly describe what the public entity allegedly did. (*Stockett*, supra, 34 Cal.4th at p. 446.) In response to the claim form’s request to identify the “action or inaction” that caused his injury, Plaintiff identified the failure to have crossing guards, failure to have proper street signage, failure to have a traffic safety officer, and failure to comply with the requirements of the Manual of Uniform Traffic Control Safety Devices for Streets and Highways. (RJN Exh. 1.)

The TAC’s second and sixth causes of action fairly attribute liability to the conduct identified under the government claim. These causes of action are premised on the failure to provide crossing guards which purportedly resulted from the Districts failure to take appropriate action in connection with the CSSP and to address the purported dangerous conditions associated with the designated primary school entrance.

Accordingly, the TAC premises liability under the second and sixth causes of action on facts fairly reflected in the government claim.

Leave to Amend

Plaintiff claims that through discovery, he can now amend the complaint to show the undertaking by pleading facts to explicitly show that the School stopped the crossing guard program because of Tickell’s email and the School’s belief that it lacked authority to cross students at the intersection. Plaintiff claims he can also amend the complaint to show the District abdicated its mandatory duties to approve the CSSP.

Given the above analysis, it does not appear that Plaintiff’s proposed amendments will cure the deficiencies of the TAC. Therefore, the Court sustains the District’s demurrer without leave to amend.

Analysis—Motion to Strike

The School seeks to strike its inclusion in the TAC's second cause of action [dangerous condition] arguing that when the Court granted Plaintiff leave to amend following the District's demurrer to the SAC, it did not allow for an amendment as to the School. The School argues it did not demurrer to the SAC and had answered, therefore there was no basis to amend as to the School.

Plaintiff argues that the School's motion is based on the premise that an amendment to the dangerous condition cause of action was beyond the scope of leave given by the Court when ruling on the demurrer to the SAC. Plaintiff argues that although the demurrer was to the SAC's first cause of action, leave to amend the dangerous condition claim was given based on the Court's reasoning that the allegations in the SAC reflected a dangerous condition cause of action, rather than the negligent supervision claim under which the facts were pled. Plaintiff argues he took the facts that the Court found did not support his negligent supervision claim and re-pled them in a Government Code section 830 cause of action. Plaintiff argues that such amendment falls within the scope of the leave granted following the prior demurrer.

Plaintiff further argues that even if the amendment goes beyond the scope of the leave granted, a motion to strike is discretionary under Code of Civil Procedure section 436, and given the law's liberal policy regarding amendments, the Court should exercise its discretion and not strike the matter because it will only lead to a motion to amend that will ultimately be granted.

On reply, the School asserts that Plaintiff misconstrues the basis for its motion as the motion is based on Plaintiff's failure to obtain leave to amend the complaint against the School, not to the addition of the particular cause of action. The School argues that Plaintiff's opposition is nothing more than an improper motion for leave to amend that does not comply with the pleading requirements for seeking such leave.

As to the SAC, in granting leave to amend the Court "g[ave] the pleader an opportunity to cure the defects in the particular causes of action to which the demurrer was sustained, but that is all." (*Community Water Coalition v. Santa Cruz County Local agency Formation commission* (2011) 200 Cal.App.4th 1317, 1329.) Therefore, it is improper to "amend the complaint to add a new cause of action without having obtained permission to do so, unless the new cause of action

is within the scope of the order granting leave to amend.” (*Harris v. Wachovia Mortg. FSB* (2010) 185 Cal.App.4th 1018, 1023.) But a new cause of action is proper if it “directly responds to the court’s reason for sustaining the earlier demurrer.” (*Patrick v. Alacer Corp.* (2008) 167 Cal. App. 4th 995, 1015.)

Here, Plaintiff was not granted leave to amend to bring a new cause of action against the School; leave was granted as to the District. While an April 7, 2026 minute order exists for a “demurrer” by the School and that purported to sustain the School’s demurrer with leave to amend, that appears to have been in error because the School did not file a demurrer to the SAC. At the November 13, 2025 hearing on the District’s demurrer to the FAC, the Court provided the District and the School with an April 7, 2026 date for hearing demurrers to the SAC. As stated, the School did not file a demurrer to the SAC. Thus, the amendment as to the School is improper. Further, Plaintiff’s opposition does not provide the necessary information required for a motion seeking leave to amend.

Therefore, the Court grants the School’s motion to strike without prejudice to Plaintiff’s bringing a properly notice motion for leave to amend.

RULING

Based on the analysis provided above, the Court rules as follows:

- (1) Sustains Defendant San Bernardino City Unified School District’s demurrer to the TAC’s first, second and sixth causes of action without leave to amend. The District is immune from liability under Education Code section 44808 or Plaintiff does not sufficiently allege the District violation of a mandatory duty resulting in Plaintiff’s injury.
- (2) Grant ASA Charter School, Inc.’s motion to strike without prejudice to Plaintiff bringing a proper notice motion for leave to amend.
- (3) Grants the District’s request and take judicial notice of Plaintiff’s Government Tort Claim (RJN, Exh. 1); Denies the District’ request for judicial notice of the Hopwood declaration (RJN, Exh. C), and tentative rulings (RJN, Exhs. 2-4).